

TENTATIVE RULING

Case: **Morgan Creek Construction, Inc. v. Swinerton Builders, Inc.**
Case No. CV2025-2092

Hearing Date: **September 16, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Morgan Creek Construction, Inc.’s (“plaintiff”) request for judicial notice in support of opposition is **DENIED**. (Evid. Code, §§ 452, subd. (d), 453.) The document is not relevant to the Court’s determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendant Swinerton Builders, Inc.’s (“defendant”) motions to compel further responses to form interrogatories, special interrogatories, and requests for admission are **DENIED**. (Code Civ. Proc., §§ 2030.300, 2033.290.) Unless notice of a motion to compel further discovery is given with 45 days of the service of the verified response or on or before any specific later date to which the demanding party and the responding party have agreed to in writing, the demanding party waives any right to compel a further response to the demand. (Code Civ. Proc., §§ 2030.300, subd. (c), 2033.290, subd. (c).) The Court finds that the parties did not agree in writing that defendant’s deadline to file these motions to compel further was extended to July 15, 2026. (Harris Decl., ¶ 7, Exh. B; Conforti Decl., ¶ 17, Exh. A.) The Court further finds that plaintiff did not receive timely notice of these motions. (Harris Decl., ¶ 11, Exh. D.) As plaintiff objects on this basis, this Court is “without authority to rule on [these] motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Plaintiff’s request for monetary sanctions is **GRANTED** in the amount of **\$7,325.00** against defendant and defendant’s counsel. (Code Civ. Proc., §§ 2030.300, subd. (d); 2033.290, subd. (d); Harris Decl., ¶ 14.) The Court declines to award sanctions for time not yet incurred. Defendant and defendant’s counsel shall pay the sanctions by **October 28, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Purpura-Pontoniere v. The Regents of the University of California**
 Case No. CV2026-1391

Hearing Date: **September 16, 2026** **Department Thirteen** **9:00 a.m.**

On the Court's own motion, defendant The Regents of the University of California's demurrer to plaintiffs Roan Purpura-Pontoniere, Mary Purpura, and Paolo Pontoniere's complaint is **CONTINUED to October 21, 2026**, at 9:00 a.m. in Department Thirteen.